

Present :
Mr. Justice Md. Jahangir Hossain
And
Mr. Justice Ashish Ranjan Das.

Criminal Misc.No.1827 of 1999

In the matter of:

Shah Jamal alias Shajahan
..... Petitioner
-Versus-
The State
..... Opposite party.
No one appears
.....For the petitioner.
Mr. S.M. Golam Mostafa Tara, DAG with
Mr. Md. Anichur Rahman, A.A.G.
... For the State

Heard on: 19.11.2020

Judgment on: 26.11.2020

Ashish Ranjan Das, J:

Rule for quashment under section 561-A of the Code of Criminal procedure (for short the Code) at the instance of the convict petitioner was issued on 25.03.1999 in the following terms:-

“ Let a Rule issue calling upon the Opposite party to show cause as to why the proceedings of judgment and order of the Special Tribunal Judge, Court No.10, Dhaka dated 29.03.98 passed in Special Tribunal Case No. 1000 of 1993 should not be quashed and / or such other or further order or orders passed as to this court may seem fit and proper. ”

However, none appeared to press the rule, although the matter has been occurring in the daily cause list with the name of the

advocate over the period. We have heard the objection raised by the learned Deputy Attorney General and perused the entire records.

Short fact relevant for the purpose is that in the evening on 24.10.1992 the informant police officer and his forces were on regular petrol, they reached Gulshan market no.2 and heard a hue and cry. As they rushed people gathered there informed that 4/5 muggers snatched away gold ornaments and money from a couple and ran away. The police gave a chase and could catch 2 culprits from inside the premises of Gulshan mosque, looted gold ring was recovered from Mizan and this petitioner Shah Jamal alias Jamal. They were taken into the custody and according to their information the police took them to Badda area as was identified they could much 2 persons Sobhan and Harunur Rashid alias Habib. Sobhan was carrying endanger hand bomb he exploded one bomb that caused injury to a member of the raiding party constable Amjad while the other one Harun alias Habib fled away, stating above Sub-Inspector Zakir Hossain the leader of the raiding party registered Ejahar with the Gulshan police station on 24.10.1992 that was later numbered as G.R. case No.4838 of 1992. After investigation charge sheet was submitted cognizance was taken and witnesses were examined. The learned Tribunal found the case proved against although 3 accused persons Sobahan and 2 others including this petitioner. A separate case attracting various section of the Penal Code was also registered against this person for the offence of extortion.

It appears that convincing evidence was produced in respect of

explosion of hand bomb by co-accused Sobahan and there were evidence of recovery of looted articles from accused Mizan but against this accused petitioner Shah Jamal alias Jamal, the allegation attracts section 3/4 of the Explosive Substance Act but we do not see that according to the FIR and the judgment that any explosive substance could be recovered from him.

It may be presumed that he was a member of gang committing extortion but so far as the ingredients of recovery of explosive substances are concerned the learned Special Tribunal ought to have noticed that there was no evidence in respect of recovery of explosive substances from this accused petitioner Shah Jamal.

Thus, we find merit in the rule and the same is accordingly made absolute. The judgment of conviction and sentence passed in Special Tribunal Case No. 1000 of 1993 by the Special Tribunal No.10 convicting and sentencing this accused petitioner is hereby set aside and quashed.

Communicate the judgment and Order to the court below at once.

Send down the L.C.R.

Justice Ashish Ranjan Das

I agree.

Justice Md. Jahangir Hossain